

Chapter 6

FIRE PREVENTION AND PROTECTION*

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***Cross references**—Fire department, § 2-201 et seq.; division of fire prevention and building inspection, § 2-204; alarm systems, Ch. 3; buildings and building regulations, Ch. 5; electrical code, § 5-126; housing standards, § 7-26 et seq.; mobile homes, § 10-46 et seq.; hazardous material transportation and possession, § 14-71 et seq.; fire lanes, § 19-146 et seq.

State law reference—Authority to adopt regulations regarding fire protection, RSA 47:22.

ARTICLE I. FIRE CODES AND ENFORCEMENT**Sec. 6-1. Fire codes adopted.**

The state fire code, including all applicable NFPA Codes and Standards, except as modified by regulation of the State of New Hampshire and also any appendices and exhibits, and any amendments, revisions, updates and readoptions, including subsequent editions thereto, is hereby adopted and incorporated by reference, in accordance with Chapter Saf-C 6000, the state fire code, as enacted by regulation by the New Hampshire State Fire Marshal.

(Ord. No. 297, Art. I, § 1, 11-9-88; Amended 3-5-91; Ord. No. 526, § 1, 3-14-2012)

Sec. 6-1.5. Administrative rules adopted.

The Claremont Fire Department "Sprinkler and Fire Alarm Rules and Regulations" and also any appendices and exhibits thereto, as well as any amendments, revisions, updates and readoptions thereof, is hereby adopted and incorporated by reference. A copy of the current regulations shall be maintained on file at the city's fire department.

(Ord. No. 527, § 1, 7-11-2012)

Sec. 6-2. Amendments.

The codes adopted in section 6-1, wherever it pertains to authority having jurisdiction, shall read the chief of the fire department or his representative who is designated to enforce this code.

(Ord. No. 297, Art. II, § 1, 11-9-88)

Sec. 6-3. Enforcement responsibility.

The chief of the fire department and his/her designees, including code enforcement officials, shall be responsible for enforcing this chapter.

(Ord. No. 297, Art. III, § 1, 11-9-88; Ord. No. 542, § 2, 4-8-2015)

Sec. 6-4. Right of entry.

The chief of the fire department, or his designated representative, may, at all reasonable hours, enter any building or premises for the purpose of inspection or investigation under the provisions of this code as he may deem necessary.

(Ord. No. 297, Art. III, § 2, 11-9-88)

Sec. 6-5. Uniformed fire detail.

At all public gatherings in places of assembly covered by this code where the attendance is expected to exceed five hundred (500) persons, the person, group, or agency responsible for the gathering shall provide for the presence of a uniformed member of the fire department from one-half hour prior to the time of gathering to one-half hour after the gathering has terminated. This provision may be waived when deemed appropriate by the chief of the fire department.

(Ord. No. 297, Art. III, § 3, 11-9-88)

Sec. 6-6. Right to close.

The chief of the fire department or his/her designees, including code enforcement officials, may, pursuant to this Code and RSA 154:21-a and RSA 155-A:7, upon finding of a condition hazardous to life, order such place to be vacated until such violation is corrected. Additionally, the fire chief or his/her designees, including code enforcement officials, may, upon a finding of a condition hazardous to life in a place of public assembly, order such a place to be cleared of occupants until such violation is corrected. The initial period of closing of a place of public assembly shall not exceed twenty-four (24) hours, but the closing period may be extended by the chief of the fire department if the owner, occupant or agent of such place of assembly fails to correct the hazard.

(Ord. No. 297, Art. III, § 4, 11-9-88; Ord. No. 542, § 2, 4-8-2015)

Sec. 6-7. Appeals—Designation of building code board of appeals.

The building code board of appeals shall hear and decide appeals which may be taken by anyone aggrieved by a decision of the chief of the fire department or designated representative. (Ord. No. 297, Art. IV, § 2, 11-9-88; Ord. No. 542, § 2, 4-8-2015)

Cross reference—Boards, committees, commissions, § 2-26 et seq.

Secs. 6-8—6-11. Reserved.

Editor's note—Ord. No. 542, § 2, adopted April 8, 2015, repealed §§ 6-8—6-11, which pertained to appeals procedure; hearing and notice; modification; decisions; and derived from Ord. No. 297, Art. IV, §§ 1—6, 11-9-1988. See also the Code Comparative Table.

Sec. 6-12. Violation.

It is unlawful for any person to violate a provision of the fire codes and regulations adopted in section 6-1 or to fail to comply with any of the requirements of this Code, or to erect, construct, alter or repair a building or structure in violation of an approved plan or directive of the fire chief or designee, including building or code enforcement officials, or of a permit or certificate issued under the provisions of these codes. Any person who violates any provision of these codes and regulations shall be subject to a penalty not to exceed two hundred seventy-five dollars (\$275.00) for the first offense for each violation for each day and five hundred fifty dollars (\$550.00) for subsequent offenses for each violation for each day that such violation(s) is (are) found to continue after the date by which the person is ordered to abate such violation or, in the event the violation is determined to be an unsafe and dangerous condition of a structure or equipment or an imminent hazard, the date on which the person receives written notice of the violation.

(Ord. No. 185, Art. V, § 1, 11-8-78; Ord. No. 297, Art. V, § 1, 11-9-88; Ord. No. 542, § 2, 4-8-2015)

ARTICLE II. OPEN BURNING**Sec. 6-13. Purpose.**

The purpose of this article is to promote and safeguard the public health, safety and welfare of the citizens of Claremont and to establish policies and procedures to permit open burning within the city limits.

(Ord. No. 556, § 2, 10-25-2017)

Sec. 6-14. Applicability; permit required.

(a) This article shall apply to all open burning within the city.

(b) No person shall allow or allow any other person to kindle or light an outside fire within the city limits without first obtaining a written permit from the chief of the fire department or his/her designee, except no permit is required for the normal operation of the following:

- Gas and charcoal grills;
- Any stove, furnace, fireplace or other heating device within a building used for human or animal habitation unless the material being burned includes combustible domestic waste as defined herein; or
- The use of propane, natural gas, or kerosene in a device intended for heating in construction or maintenance activities.

(c) All open burning under a duly-issued permit shall be conducted in a safe and nuisance free manner, when wind and weather conditions are such as to minimize adverse effects and not create a health hazard, nuisance or visibility hazard. The State of New Hampshire Daily Fire Danger rating must be at a Class 3 level or lower. The Daily Fire Danger rating may be found by calling the Claremont Fire Department at (603) 542-5156 or online at the New Hampshire Division of Forests and Lands at: www.nhdf.org/fire-control-and-law-enforcement/daily-fire-danger.aspx. Open burning shall be conducted in conformance with all local, state and federal laws, rules and regulations related to open burning.

(Ord. No. 556, § 2, 10-25-2017)

Sec. 6-15. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Campfire shall mean a small "category 1" outdoor fire no greater than twenty-four (24) inches in diameter and contained within a ring of fire resistive material, intended for recreation or cooking, and does not include a fire intended for the disposal of waste wood or refuse.

Category 2 fire shall mean a camping or cooking fire no greater than four (4) feet in diameter and contained within a ring of fire resistive material.

Category 3 fire shall mean any fire other than a category 1 or 2 fire, greater than four (4) feet in diameter and not contained within a ring of fire resistive material.

Clean wood shall mean natural wood which has not been painted, varnished or coated with a similar material, has not been pressure treated with preservatives and does not contain resins or glues as in plywood or other composite wood products.

Combustible domestic waste shall mean any household waste material or trash that is prohibited from being burned under RSA 125-N:4.

Nuisance smoke shall mean smoke from any permitted fire that travels to an adjoining property and prevents the occupant of that property from experiencing the quiet enjoyment of his/her residence.

Open burning shall mean kindling or maintaining a fire where the products of combustion are emitted directly into the ambient air without being contained in an approved appliance where all products of combustion pass through an approved stack or a chimney.

(Ord. No. 556, § 2, 10-25-2017)

Sec. 6-16. Permitted areas of open burning.

Category 1 fires may be kindled within the following zoning districts provided they meet all the requirements of section 6-17 of this article: B-2 Business; CR-1 City Center Residential 1; I-1 Industrial 1; I-2 Industrial 2; I-3 Industrial 3; R-1 Residential 1; R-2 Residential 2; RR Rural Residential; RR-2 Rural Residential 2; and AR Agricultural Residential, as further described in section 6-18.

Category 2 and category 3 fires may be kindled within the following zoning districts provided they meet all the requirements of section 6-17 of this article: B-2 Business; I-1 Industrial 1; I-2 Industrial 2; I-3 Industrial 3; R-1 Residential 1; RR Rural Residential; RR-2 Rural Residential 2; and AR Agricultural Residential, as further described in section 6-18.
(Ord. No. 556, § 2, 10-25-2017)

Sec. 6-17. Requirements for category 1, 2, and 3 fires.

All open burning permits issued by the chief of the fire department or his/her designee are subject to the following requirements:

- (1) Only clean wood not exceeding five (5) inches in diameter shall be burned;
- (2) All category 1, 2 and 3 fires shall be approved by the chief of the fire department or his/her designee and may not be kindled without a current written permit;
- (3) Category 1 fires shall be at least twenty-five (25) feet from any structure on the permittee's property;
- (4) Category 2 and 3 fires shall be at least fifty (50) feet from any structure on the permittee's property;
- (5) Category 1 and 2 fires shall be at least one hundred (100) feet from any structures on all abutting properties;
- (6) Category 3 fires shall be at least one hundred fifty (150) feet from any structures on all abutting properties;
- (7) Category 1, 2 and 3 fires shall not be permitted in any mobile home park or in clusters of mobile homes on individual lots;

- (8) No permitted fire shall create nuisance smoke to any person or property beyond the lot lines of the property on which the fire is being kindled.
(Ord. No. 556, § 2, 10-25-2017)

Sec. 6-18. City of Claremont open burning matrix.

<i>Zone</i>	<i>Full Zone Label</i>	<i>Category 2 and 3 Fires Allowed</i>	<i>Category 1 Fires Allowed</i>
B-2	Business—2	Yes	Yes
CB-2	City Ctr. Business—2	No	No
CR-1	City Ctr. Residential—1	No	Yes
CR-2	City Ctr. Residential—2	No	No
I-1	Industrial 1	Yes	Yes
I-2	Industrial 2	Yes	Yes
I-3	Industrial 3	Yes	Yes
MU	Municipal	No	No
MUHD	Municipal/Hospital Dist.	No	Yes
PR	Professional Residential	No	No
R-1	Residential—1	Yes	Yes
R-2	Residential—2	No	Yes
RR	Rural Residential	Yes	Yes
RR-2	Rural Residential—2	Yes	Yes
AR	Agricultural	Yes	Yes

(Ord. No. 556, § 2, 10-25-2017)

Sec. 6-19. Complaints; permit revocation.

All complaints associated with permitted burns will be handled on an individual basis by a fire department official. If fire

escapes from control or if it is determined that any person is open burning without a current permit, that person may be held liable for the following:

- (1) Payment of damages to the property of another;
- (2) Payment of suppression costs to the city;
- (3) Prosecution for failure to comply with the provisions of this article.

The chief of the fire department or his/her designee is empowered, as the authority having jurisdiction (AHJ), to revoke any open burn permit immediately and without further notice upon discovery of a violation of a provision of this article. (Ord. No. 556, § 2, 10-25-2017)

Sec. 6-20. Penalties.

This article shall be enforced and shall be subject to penalties pursuant to article I, section 6-12. (Ord. No. 556, § 2, 10-25-2017)